

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #7	CCRB Case #: 201901673	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/20/2019 10:30 PM	Location of Incident: In the vicinity of 645 9th Avenue	Precinct: 18	18 Mo. SOL 8/20/2020	EO SOL 4/6/2021	
Date/Time CV Reported Sat, 02/23/2019 10:32 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 02/23/2019 10:32 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Ahmed Abdalla	07927	948580	MTN PCT
2. POM John Ouellette	22222	962651	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM John Ouellette	Force: Police Officer John Ouellette used physical force against § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Ahmed Abdalla	Abuse: Police Officer Ahmed Abdalla forcibly removed § 87(2)(b) [REDACTED] to the hospital.	[REDACTED]
C.POM John Ouellette	Abuse: Police Officer John Ouellette forcibly removed § 87(2)(b) [REDACTED] to the hospital.	[REDACTED]
§ 87(4-b), § 87(2)(g) [REDACTED]	§ 87(4-b), § 87(2)(g) [REDACTED]	[REDACTED]
§ 87(4-b), § 87(2)(g) [REDACTED]	[REDACTED]	[REDACTED]
§ 87(4-b), § 87(2)(g) [REDACTED]	[REDACTED]	[REDACTED]
§ 87(4-b), § 87(2)(g) [REDACTED]	[REDACTED]	[REDACTED]
§ 87(4-b), § 87(2)(g) [REDACTED]	[REDACTED]	[REDACTED]
§ 87(4-b), § 87(2)(g) [REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On February 25, 2019, § 87(2)(b) called the CCRB and filed the following complaint via the Call Processing System.

On February 20, 2019, at approximately 10:30 p.m., § 87(2)(b) entered Southern Hospitality, a restaurant at 645 9th Avenue in Manhattan, and remained in the vestibule to charge his phone and find directions home. An employee of the restaurant, § 87(2)(b) approached § 87(2)(b) and told him he had to leave, § 87(2)(b) refused, and § 87(2)(b) call 911. Police Officer Ahmed Abdalla and Police Officer John Ouellette, both of the 18th Precinct, responded, spoke to § 87(2)(b) and ordered § 87(2)(b) to leave. After a few minutes, § 87(2)(b) exited the restaurant, followed by the officers, wherein PO Ouellette allegedly grabbed § 87(2)(b) by the waist with both hands, lifted him into the air, and threw him onto the ground (**Allegation A: Force, § 87(2)(g)**). The officers handcuffed § 87(2)(b) called for an ambulance, and soon after, § 87(2)(b) was removed to § 87(2)(b) (**Allegations B and C: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) was discharged a few hours later, on February 21, 2019.

There is no video evidence for this case.

Findings and Recommendations

Allegation A—Force: Police Officer John Ouellette used physical force against § 87(2)(b)

Allegation B—Abuse of Authority: Police Officer Ahmed Abdalla forcibly removed § 87(2)(b) to the hospital.

Allegation C—Abuse of Authority: Police Officer John Ouellette forcibly removed § 87(2)(b) to the hospital.

On February 20, 2019, at approximately 9:45 p.m., § 87(2)(b) left a charity event at Hudson Terrace, 621 West 46th Street in Manhattan, and walked eastward by himself to find the train home (BR01). § 87(2)(b) thought he had three alcoholic drinks at the charity event, but denied that he was intoxicated. A few minutes later, due to the heavy snow storm, § 87(2)(b) entered Southern Hospitality, a restaurant at 645 9th Avenue in Manhattan, in order to charge his phone and find directions to get home.

§ 87(2)(b) stood in the vestibule of Southern Hospitality, and was approached by § 87(2)(b), who told him he was not allowed to be in the restaurant and asked him to leave. § 87(2)(b) told § 87(2)(b) that he was not going to leave until he figured out how to get home, and offered to purchase something. § 87(2)(b) told § 87(2)(b) he could not stay or purchase anything, and said he was going to call 911. § 87(2)(b) said ok, remained in the vestibule of the restaurant, and approximately five minutes later, PO Abdalla and PO Ouellette responded.

The officers spoke with § 87(2)(b) who told them that § 87(2)(b) was “causing a commotion, and [had] been drinking.” The officers then approached § 87(2)(b) who told them that he was lost and trying to get home, and confirmed that § 87(2)(b) asked him to leave and he refused. The officers told § 87(2)(b) that he was not supposed to be in the restaurant, and had been asked to leave. § 87(2)(b) stated that because he felt the situation escalating, he exited the restaurant and began to walk away.

The officers followed him outside, and § 87(2)(b) denied that they told him to stop, or made any other statements to him. The officers caught up with him as he was crossing 9th Avenue, wherein PO Ouellette grabbed § 87(2)(b) by the waist with both hands, lifted him into the air, and threw § 87(2)(b) onto the ground. § 87(2)(b) said he was probably moving his body

when PO Ouellette grabbed him. § 87(2)(b) landed chest first on the ground and sustained a bruise on his leg. § 87(2)(b) was irate, but denied that he resisted or fought back against the officers. The officers pulled § 87(2)(b)'s arms behind his back and handcuffed him.

Soon after, an ambulance arrived, and § 87(2)(b) was transported to § 87(2)(b) in Manhattan. § 87(2)(b) was still irate at the hospital, and a doctor told § 87(2)(b) that he would be put in the psych ward. § 87(2)(b) was discharged and allowed to leave several hours later. § 87(2)(b) acknowledged that his discharge paperwork from § 87(2)(b) said he was intoxicated.

The investigation obtained § 87(2)(b)'s medical records from § 87(2)(b) (BR06), which in sum and substance reported the following. § 87(2)(b) was brought into the Emergency Department ("ED") by ambulance and NYPD officers at approximately 11:12 p.m. on February 20, 2019. § 87(2)(b) was described by the hospital staff as initially "very uncooperative and agitated," and noted that he attempted to walk out of the ED. At approximately 11:34 p.m., the ED staff ordered a safety observation for § 87(2)(b) notified security, and he was placed in "orange hospital gown/pants." An ED note further reported that § 87(2)(b) was agitated, yelling, making racial slurs, and was going to be medicated to treat his agitation and induce sedation, however, the hospital staff was able to verbally deescalate the situation before medication was required. § 87(2)(b) was diagnosed with acute alcohol intoxication, denied any other medical complaints, and was discharged at approximately 1:40 a.m. on February 21, 2019.

EVENT #§ 87(2)(b) generated on February 20, 2019, at 10:32 p.m., pursuant to § 87(2)(b)'s 911 call, reported that § 87(2)(b) requested police to respond to Southern Hospitality, in regards to a male standing within the vestibule of the restaurant, who was acting aggressive, harassing him, and refused to leave the establishment (BR03).

§ 87(2)(b) § 87(2)(b) was working at the restaurant the night of the incident, and at approximately 10:30 p.m., § 87(2)(b) entered into the restaurant's vestibule and was "very intoxicated" (BR02). § 87(2)(b) approached § 87(2)(b) told him that the restaurant was closing soon, that he could not loiter in the restaurant, and asked him to leave. § 87(2)(b) argued with § 87(2)(b) said the restaurant was a public place and he did not have to leave, and threatened to call 911 on § 87(2)(b) § 87(2)(b) in turn called 911 on § 87(2)(b) explained that there was a pizzeria connected to Southern Hospitality, which § 87(2)(b) went into instead of leaving the establishment. § 87(2)(b) approached him again, told him that he had to leave, and § 87(2)(b) again refused.

A few minutes later, PO Ouellette and PO Abdalla responded. § 87(2)(b) said that § 87(2)(b) argued with the officers, "gave them attitude," and when they ordered him to leave the restaurant, § 87(2)(b) refused. The officers grabbed § 87(2)(b) to escort him out, however, § 87(2)(b) jerked away from their grasp, cocked his arm back, and swung at the officers' faces. The officers quickly brought § 87(2)(b) to ground outside, and called for an ambulance.

§ 87(2)(g) Upon arrival to the location, PO Abdalla and PO Ouellette spoke to § 87(2)(b) who told the officers that § 87(2)(b) had been at the restaurant for a long time, was highly intoxicated, refused to purchase anything, and refused to leave. The officers approached § 87(2)(b) and asked him to leave, however, he refused and was very combative with the officers. Both officers stated that § 87(2)(b) was highly intoxicated, which they based on the strong smell of alcohol emanating from his person, his slurred speech, his combativeness, and his aggressive behavior toward the restaurant staff and the officers. Both officers stated that, due to

his high-level of intoxication, they believed that § 87(2)(b) was a danger to himself and others, and decided to remove him to the hospital for his safety.

While PO Abdalla stated that upon grabbing § 87(2)(b) to escort him from the restaurant, § 87(2)(b) pulled away from the officers and either swung his fist or pushed them (BR04); PO Ouellette stated that upon escorting § 87(2)(b) outside, he suddenly turned around and swung his fist at the officers (BR05). PO Abdalla and PO Ouellette grabbed § 87(2)(b) brought him quickly to the ground, and handcuffed him. Both officers denied that they employed a forcible takedown of § 87(2)(b) but rather quickly guided him to the ground in a gradual motion to gain control over his movements and successfully handcuff him. Both officers also denied that either of them lifted § 87(2)(b) into the air and threw him onto the ground.

PO Abdalla called for EMS to respond, and upon their arrival, the officers placed § 87(2)(b) into the ambulance. PO Ouellette rode in the ambulance with § 87(2)(b) to § 87(2)(b), while PO Abdalla followed in their RMP. At the § 87(2)(b), § 87(2)(b) was still highly intoxicated and combative towards the officers as well as the hospital staff, which led the hospital staff to call a “Code Orange,” which is a hospital code used to alert staff that a combative patient needs to be isolated and sedated.

Officers may use force when it is reasonable to ensure the safety of a member of the service, or a third person, or otherwise protect life, or when it is reasonable to place a person into custody or to prevent escape from custody. When appropriate and consistent with personal safety, MOS will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. Patrol Guide, Procedure 221-01 (BR07).

When a uniformed member of the service reasonably believes that a person is apparently mentally ill, temporarily deranged, or conducting themselves in a manner likely to result in a serious injury to themselves or others, the person must be taken into protective custody. Patrol Guide, Procedure 221-13 (BR08).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

[REDACTED]

§ 87(4-b), § 87(2)(g)

[REDACTED]

§ 87(4-b), § 87(2)(g)

[REDACTED]

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first, and only, CCRB complaint in which § 87(2)(b) has been a party.
- PO Abdalla, a nine-year-member-of-service, has had seven prior CCRB complaints filed against him, with a total of 13 allegations, four of which have been substantiated (see Officer History). § 87(2)(g)
 - In CCRB #201211620, refusal to provide shield number and retaliatory summons allegations were substantiated against PO Abdalla, the CCRB recommended charges, and the NYPD penalized him with the forfeiture of five vacation days.
 - In CCRB #201706475, retaliatory summons and interference with recording device allegations were substantiated against PO Abdalla, the CCRB recommended Command Discipline B, and is pending NYPD disposition.
- PO Ouellette, a two-year-member-of-service, has had no prior CCRB complaints filed against him (see Officer History). This is the first CCRB complaint filed against PO Ouellette.

Mediation, Civil and Criminal Histories

- § 87(2)(b) initially chose to pursue mediation in this case, which was accepted by the Mediation Unit on March 29, 2019. After an unsuccessful mediation session, this case was returned to the Investigations Division on June 18, 2019.
- On August 14, 2019, a FOIL request was sent to the NYC Comptroller's Office to determine whether § 87(2)(b) has filed a Notice of Claim in regards to this incident, the results of which will be added to the case file upon receipt (BR16).
- § 87(2)(b)

Squad No.: 7

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date